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SCHEDULES:

First Schedule—Provisions with respect to acquisition of land in the United Kingdom by the Postmaster-General.

Second Schedule—Section sixty-five of the Post Office Act, 1908, as originally enacted.

Third Schedule—Enactments repealed.

An Act to consolidate certain enactments relating to the Post Office with corrections and improvements made under the Consolidation of Enactments (Procedure) Act, 1949. [31st July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Postmaster-General and officers

1.—(1) Any person from time to time appointed in that behalf by Her Majesty by letters patent shall be the master of the Post Office by the style of Her Majesty's Postmaster-General. Appointment of Postmaster-General.

(2) Upon and by virtue of the appointment of any person to be Her Majesty's Postmaster-General, the benefit of all contracts, bonds, securities and things in action vested in his predecessor at the time of the predecessor ceasing to hold office shall be transferred to and vested in, and enure for the benefit of, the person so appointed, in the same manner as if he had been contracted with instead of his predecessor and as if his name had been inserted in all such contracts, bonds and securities instead of the name of his predecessor.

2. The Postmaster-General may appoint for the purposes of the Post Office such officers, deputies, agents and servants as seem to him necessary and, subject to the provisions of this Act, may establish such posts and post offices as he thinks expedient, and collect, receive, forward, convey and deliver in such manner as he thinks expedient all postal packets transmitted within or to or from the British postal area or a British postal agency. General powers of Postmaster-General.

Postmaster-General's privilege

Exclusive
privilege of
Postmaster-
General.

3.—(1) Subject to the provisions of this section, the Postmaster-General shall within the British postal area have the exclusive privilege of conveying from one place to another, and of performing all the incidental services of receiving, collecting, despatching and delivering, all letters :

Provided that, subject to compliance with such terms, conditions and restrictions as the Postmaster-General thinks fit and to the concurrence of the Treasury, the Postmaster-General may either generally or in the case of any particular person authorise—

- (a) letters to be sent, conveyed and delivered otherwise than by post ;
- (b) the collection of letters otherwise than by an officer of the Post Office, whether to be despatched by post or otherwise.

(2) Nothing in the foregoing subsection shall make unlawful—

- (a) the conveyance and delivery of a letter personally by the sender thereof ;
- (b) the sending, conveyance and delivery of a letter by means of a private friend who himself delivers that letter to the addressee ;
- (c) the sending, conveyance and delivery of a letter concerning the private affairs of the sender or addressee thereof by means of a messenger sent for the purpose by the sender of the letter ;
- (d) the sending, conveyance and delivery otherwise than by post of any document issuing out of a court of justice or of any return or answers thereto ;
- (e) the sending and conveyance of letters from merchants who are the owners of a merchant ship or commercial aircraft, or of goods carried in such a ship or aircraft, by means of that ship or aircraft and the delivery thereof to the addressee by any person employed for the purpose by those merchants, so, however, that no payment or reward, profit or advantage whatsoever is given or received for the conveyance or delivery of the letters ;
- (f) the sending, conveyance and delivery of letters by land by means of a common carrier, being letters concerning and for delivery with goods carried by him, so, however, that no payment or reward, profit or advantage whatsoever is given or received for the conveyance or delivery of those letters :

Provided that nothing in this subsection shall authorise any person to make a collection of letters for the purpose of their being sent or conveyed in any manner authorised by this subsection.

(3) Notwithstanding anything in the last foregoing subsection, the following persons are expressly forbidden to carry a letter or to receive, collect or deliver a letter, even if they receive no payment or reward for doing so, that is to say—

- (a) except for such letters as are mentioned in paragraph (e) of the last foregoing subsection, owners of, or any person on board, any ship or aircraft on a voyage or flight between, to or from places in the British postal area ;
- (b) except for such letters as are mentioned in paragraph (f) of the last foregoing subsection, common carriers by land or their servants or agents ;
- (c) save as provided in section forty-four of this Act or in section two of the Motor Vehicles and Road Traffic Act (Northern Ireland), 1930 (which relates to the conveyance of mails by public service vehicles in Northern Ireland), owners, drivers or conductors of public service vehicles :

Provided that this subsection shall not make unlawful the receipt, carriage or delivery of letters between places in the British postal area by any person which would otherwise be lawful by virtue of paragraph (a) or, if that person is a passenger, paragraph (b) or (c) of the last foregoing subsection.

(4) For the purposes of this section, the expression " letter " includes a packet, so, however, as not to include a newspaper or a parcel unless a communication not forming part of a newspaper is contained therein.

4.—(1) Without prejudice to subsection (3) of this section, if, save as permitted by or under this Act, any person does any of the following things, that is to say—

Infringement
of Postmaster-
General's
privilege.

- (a) sends or causes to be sent, or tenders or delivers in order to be sent, or conveys, or performs any service incidental to conveying, otherwise than by post, any postal packets within the exclusive privilege of the Postmaster-General ; or
- (b) makes a collection of any such postal packets for the purpose of conveying or despatching them either by post or otherwise,

he shall be liable on summary conviction to a fine not exceeding five pounds for every packet, whether the packet is sent or is intended to be sent singly or together with some other packet or thing, and if he is in the practice of doing any of the said things

to an additional fine not exceeding one hundred pounds for every week during which the practice has continued.

(2) In any proceedings for the recovery of a fine under this section, it shall lie upon the person proceeded against to prove that the act in respect of which the fine is alleged to have been incurred was done lawfully.

(3) Without prejudice to the foregoing provisions of this section, compliance with the last foregoing section shall be enforceable by civil proceedings by the Crown for an injunction or for any other appropriate relief.

In the application of this subsection to Scotland, for the reference to an injunction there shall be substituted a reference to an interdict.

General provisions as to transmission of postal packets

Postage to
be charged
on postal
packets.

5.—(1) Subject to the provisions of this and any other Act, there shall be charged by the Postmaster-General for the use of Her Majesty in respect of postal packets which are conveyed or delivered for conveyance by post under the authority of the Postmaster-General such postage and other sums as the Treasury may by warrant provide:

Provided that—

- (a) petitions and addresses forwarded to Her Majesty by post shall be exempt from postage;
- (b) petitions and addresses to Her Majesty, and petitions addressed to either House of Parliament, sent by post to a member of either House of Parliament shall be exempt from postage if the petitions or addresses do not exceed thirty-two ounces in weight and are sent without covers or in covers open at the sides.

In the application of this subsection to Northern Ireland, the expression "Parliament" includes the Parliament of Northern Ireland.

(2) A warrant under this section may—

- (a) fix or provide for the determination of the rates of postage and the other sums, if any, to be charged in respect of postal packets and postal facilities under this Act;
- (b) make provision as to the scale of weights and the circumstances according to which those rates and sums are to be charged;
- (c) confer upon the Postmaster-General power, with or without the consent of the Treasury, to remit in whole or in part any postage or other sums chargeable in such cases or classes of cases as he may determine:

Provided that the inland letter rate shall not be less than one penny.

6.—(1) Except as the Postmaster-General may otherwise direct and subject to the provisions of this Act and any Post Office regulations made thereunder, all postage and other sums chargeable in respect of postal packets by virtue of the last foregoing section shall be chargeable as stamp duties and the enactments relating to stamp duties shall apply accordingly:

General provisions relating to postage, etc.

Provided that, notwithstanding anything in those enactments, any person in the service or employment of the Post Office may sell postage stamps at any place and in any manner without any licence or authority under those enactments.

(2) The Postmaster-General or the Commissioners of Inland Revenue may, under rules made by the Treasury or made with the sanction of the Treasury by the Postmaster-General or those Commissioners, stamp any paper sent to him or them for the purpose of being stamped as covers or envelopes of postal packets with stamps denoting the appropriate postage on payment of the amount of the stamps required to be impressed and, except where that amount exceeds ten pounds, of such further fee as the Treasury may direct.

(3) The Postmaster-General, in the exercise of any powers for the time being vested in him in relation to spoiled, unused or misused stamps, may make repayments or give other stamps in return for any spoiled, unused or misused stamps either of a value equal to the face value thereof or, if he thinks fit, of any less value.

(4) The marks used by the Postmaster-General for the purpose of cancelling stamps used for the payment of postage on postal packets may consist of such words or devices as the Postmaster-General may in his discretion think proper, including words or devices constituting advertisements in respect of the use of which as postmarks payment is made by any persons to the Postmaster-General.

7.—(1) Where the postage or any other sum chargeable for the transmission of an inland postal packet other than a telegram is required to be prepaid and has not been, or has been insufficiently prepaid by the sender, there shall be payable by the addressee on the delivery of the packet, or, if the packet is refused or cannot for any other reason be delivered, by the sender—

Provisions as to postage, etc. not prepaid or insufficiently prepaid.

- (a) where the non-payment or deficiency is in respect of postage, an amount equal to double the amount of the postage or, as the case may be, of the deficiency;
- (b) where the non-payment or deficiency is in respect of a sum other than postage, an amount equal to that sum or, as the case may be, to the amount of the deficiency:

Provided that—

- (i) in the case of a packet consisting of votes or parliamentary proceedings, paragraph (a) of this subsection shall have

effect, subject to such conditions, if any, as the Treasury may by warrant prescribe, as if the word "double" were omitted ;

- (ii) the Treasury may by warrant provide that, in the case of such other packets and subject to such conditions, if any, as may be prescribed in the warrant, such lesser amount than that specified in paragraph (a) of this subsection shall be payable as may be so prescribed.

(2) Where, on the delivery to him of an inland postal packet, the addressee has paid any amount thereon in accordance with the foregoing subsection and desires to reject the packet, the Postmaster-General may, on the application of the addressee and subject to Post Office regulations, charge to the sender the said amount together with the additional postage and other charges, if any, for returning the packet to him, and the sender shall pay any sum so charged ; and on the payment by the sender of that sum the Postmaster-General shall repay to the addressee the amount paid by him under the foregoing subsection.

Conditions
of transit
of postal
packets.

8.—(1) Post Office regulations may make provision as to—

- (a) the time and mode of posting and delivery of postal packets and of the payment of postage and other sums payable in respect thereof under this Act ;
- (b) the registration of, giving of receipts for, or giving or obtaining of certificates of posting or delivery of, any postal packet, and any sums to be paid in addition to postage for that registration, receipt or certificate ;
- (c) special conditions and regulations in respect of the transmission by post of postal packets consisting of books or papers (including letters to or from blind persons) impressed or otherwise prepared for the use of the blind, or of paper posted to any person for the purpose of being so impressed or prepared, or of any article specially adapted for the use of the blind ;
- (d) stamps and covers for postal packets ;
- (e) the form, dimensions and maximum weight of postal packets ;
- (f) what may be enclosed in postal packets ;
- (g) the use for making communications of packets not charged with postage as letters ;
- (h) the extent to which written matter may be permitted on the covers of postal packets and the character and position of that written matter ;
- (i) what circulars or commercial, legal or other documents shall be charged with postage otherwise than as letters ;

- (j) what marks or indications referring to the contents of a registered newspaper may be written or printed on the newspaper or on the cover thereof without causing the packet to be charged with postage as a letter ;
- (k) the postponement of the despatch or delivery from a post office of printed or sample packets or post-cards to avoid delay in the despatch or delivery of letters ;
- (l) the re-direction of postal packets and the transmission of postal packets so re-directed either free of charge or subject to such postage or other charges as may be specified in the regulations ;
- (m) the disposal of postal packets in course of transmission by post in cases where it appears to the satisfaction of the Postmaster-General that the addressee is dead,

and otherwise as to the conditions, prohibitions and restrictions subject to which postal packets may be posted, forwarded, conveyed or delivered ; and different regulations may be made for different cases or different circumstances.

(2) Save as provided in section nine of the Crown Proceedings Act, 1947, the registration of or giving of a receipt for a postal packet, or the giving or obtaining of a certificate of posting or delivery of a postal packet, shall not render the Crown in any manner liable for the loss of the packet or the contents thereof.

(3) If any postal packet is posted or sent by post in contravention of this Act or of any warrant or regulation made thereunder, the transmission thereof may be refused and the packet may, if necessary, be detained and opened in the post office and may be returned to the sender thereof or forwarded to its destination, subject in either case to any Post Office regulations as to additional postage or other charges, or may be destroyed or otherwise disposed of as the Postmaster-General may direct.

(4) Where for any reason any postal packet can neither be delivered nor be returned to the sender, that packet may be destroyed or otherwise disposed of as the Postmaster-General may direct.

9. If any question arises whether any postal packet is a letter or any other description of postal packet within the meaning of this Act or of any warrant or regulations made thereunder, the decision of the Postmaster-General thereon shall be final.

10.—(1) The Postmaster-General may conduct in accordance with such provisions as may be contained in Post Office regulations a cash on delivery service in respect of—

- (a) inland postal packets ;

- (b) postal packets transmitted between the British postal area and a British postal agency or between such agencies ;
- (c) postal packets transmitted between the British postal area or a British postal agency and any other country or place the postal administration of which has made an arrangement with the Postmaster-General for the purposes of this section.

(2) The regulations made for the purposes of this section may prescribe the terms on which and the conditions subject to which a cash on delivery packet may be posted, conveyed and delivered, and in particular may—

- (a) authorise the Postmaster-General to withhold delivery of such a packet until the sums payable in respect thereof have been paid ; and
- (b) provide for the remission to the senders of such packets by means of money orders of the sums payable to them in respect of the packets.

(3) Where a cash on delivery packet is delivered in the British postal area or a British postal agency without the sums payable in respect thereof having been paid, the Postmaster-General may by notice in writing require the addressee within the time specified in the notice either to pay the said sums or to redeliver the packet intact to the Postmaster-General, and if the addressee fails to comply with the notice the Postmaster-General shall be entitled to recover the said sums as a debt due to him from the addressee.

(4) The provisions of this Act as to the recovery of postage or other sums payable in respect of a postal packet shall apply in relation to any sums payable in respect of a cash on delivery packet, and a certificate of the amount of any sum payable as last mentioned purporting to be signed by the Postmaster-General or on his behalf by an officer of the Post Office duly authorised by or under section eighty-three of this Act shall, in any legal proceedings for the recovery of any such sums, be sufficient proof of the facts stated therein unless the contrary is shown.

(5) In this section, the expression “cash on delivery service” means a service whereby the Postmaster-General or other postal administration undertakes at the request of the sender of a postal packet to collect, or secure the collection of, a sum of money on his behalf from the addressee as a condition of delivery ; and the expression “cash on delivery packet” means a postal packet in respect of which such an undertaking as aforesaid is given.

11.—(1) A person shall not send or attempt to send or procure to be sent a postal packet which—

(a) save as the Postmaster General may either generally or in any particular case allow, encloses any explosive, dangerous, noxious or deleterious substance, any filth, any sharp instrument not properly protected, any noxious living creature, or any creature, article or thing whatsoever which is likely to injure either other postal packets in course of conveyance or an officer of the Post Office ; or

(b) encloses any indecent or obscene print, painting, photograph, lithograph, engraving, cinematograph film, book, card or written communication, or any indecent or obscene article whether similar to the above or not ; or

(c) has on the packet, or on the cover thereof, any words, marks or designs which are grossly offensive or of an indecent or obscene character.

(2) If any person acts in contravention of the foregoing subsection, he shall be liable on summary conviction to a fine not exceeding ten pounds or on conviction on indictment to imprisonment for a term not exceeding twelve months.

(3) Post Office regulations may be made for preventing the sending or delivery by post of any such articles as are mentioned in paragraph (b) or (c) of subsection (1) of this section or of any postal packet having thereon, or on the cover thereof, any words, marks or designs of a libellous character.

(4) The detention in the Post Office of any postal packet on the grounds of a contravention of this section or of any regulations made thereunder shall not exempt the sender thereof from any proceedings which might have been taken if the packet had been delivered in due course of post.

12.—(1) The proprietor or printer of any publication such as is specified in the next following section may register it in a register of newspapers kept for that purpose at the General Post Office in London in such form and with such particulars as the Postmaster-General may direct:

Prohibition
on sending
by post of
certain
articles.

Registration
of newspapers
at Post
Office.

Provided that the Postmaster-General may refuse to permit the registration under this section of any publication printed and published outside the British postal area unless arrangements have been made to his satisfaction for maintaining a responsible representative of the publication in the United Kingdom.

(2) Any such registration shall be in respect of a period of twelve months commencing on such date in each year as the Postmaster-General may direct, and there shall be payable on each registration such fee not exceeding five shillings as may be prescribed by Post Office regulations.

(3) A publication for the time being on the said register—

- (a) shall be a registered newspaper within the meaning of this Act and of any warrant made thereunder ; and
- (b) shall be a newspaper within the meaning of any arrangement with the government or postal administration of any other country for securing advantages for newspapers sent by post.

(4) The Postmaster-General may from time to time revise the register kept under this section and remove therefrom any publication not registrable by virtue of the next following section.

(5) The decision of the Postmaster-General on the admission to or removal from the said register of a publication shall be final.

Publications
registrable as
newspapers.

13.—(1) A publication shall be registrable under the last foregoing section as a newspaper if—

- (a) it consists wholly of political or other news, or of articles relating thereto or to other current topics, or mainly of such news or articles and partly of advertisements ; and
- (b) it is printed and published in the British postal area or some other part of Her Majesty's dominions, or in a British protectorate or protected state, a mandated territory or a trust territory, or in India or the Republic of Ireland ; and
- (c) it is published in numbers at intervals of not more than seven days ; and
- (d) it has the full title and the date of publication printed at the top of the first page, and the whole or part of the title and the date of publication printed at the top of every subsequent page.

(2) A publication which is not registrable by virtue of the foregoing subsection by reason only of the proportion of advertisements to other matter therein shall nevertheless be registrable if it was stamped as a newspaper before the fifteenth day of June, eighteen hundred and fifty-five.

Supplements
to registered
newspapers.

14. A publication shall be deemed to be a supplement to, and be transmissible by post as, a registered newspaper if—

- (a) it is published with a registered newspaper ; and
- (b) it consists wholly or mainly of matter like that of the newspaper, or of advertisements, printed on paper, or wholly or partly of pictorial matter illustrative of articles in the newspaper ; and
- (c) the whole or part of the title of the newspaper is printed at the top of every page or at the top of every sheet or side on which any such pictorial matter appears ; and

- (d) all sheets of the publication are put together in some one part of the newspaper, whether gummed or stitched up with the newspaper or not:

Provided that Post Office regulations may modify the provisions of this section so far as they apply to a publication which consists wholly of pictorial matter illustrative of articles in the newspaper.

15. Where an arrangement has, either before or after the commencement of this Act, been made by Her Majesty with the government of any other country or by the Postmaster-General with any other postal administration with respect to the conveyance by post of any postal packets between the British postal area and places outside that area, or between places outside that area, whether through that area or not, the Treasury may by warrant make such regulations as may seem to them necessary for carrying the arrangement into effect, and may make provision as to the charges for the transit of postal packets, single or in bulk, the scale of weights to be adopted, and the accounting for and paying over to any other postal administration of any money received by the Postmaster-General.

16.—(1) Subject to the provisions of this section, the enactments for the time being in force relating to customs shall apply in relation to goods contained in postal packets to which this section applies brought into or sent out of the United Kingdom by post from or to the Channel Islands, the Isle of Man or any place outside the British postal area as they apply in relation to goods otherwise imported, exported or removed into or out of the United Kingdom from or to any of those islands or any such place.

(2) The Treasury, on the recommendation of the Commissioners of Customs and Excise and the Postmaster-General, may by statutory instrument make regulations—

- (a) for specifying the postal packets to which this section applies;
- (b) for making modifications or exceptions in the application of the said enactments to such packets;
- (c) for enabling officers of the Post Office to perform for the purposes of the said enactments and otherwise all or any of the duties of the importer, exporter or person removing the goods;
- (d) for carrying into effect any arrangement with the government or postal administration of any other country with respect to foreign postal packets;
- (e) for securing the observance of the said enactments and, without prejudice to any liability of any person under

Power of Treasury to carry into effect postal arrangements with other countries.

Application of customs Acts to postal packets.

those enactments, for punishing any contravention of the regulations ;

and different regulations may be made for foreign and inland postal packets respectively.

(3) The provisions of this Act as to the recovery of postage or other sums payable in respect of a postal packet shall apply in relation to any customs duty or other charges payable in respect of a postal packet to which this section applies, whether payable to Her Majesty or to the government of any country outside Her Majesty's dominions, and a certificate of the amount of any such duty or other charges purporting to be signed by the Postmaster-General or on his behalf by an officer of the Post Office duly authorised by or under section eighty-three of this Act shall in any legal proceedings for the recovery of the duty or charges be sufficient evidence of the facts stated therein unless the contrary is shown.

(4) Without prejudice to section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeal and re-enactment), sub-paragraph (2) of paragraph 1 of Part III of the Fifth Schedule to the Exchange Control Act, 1947, shall be construed as if—

- (a) any reference therein to section fourteen of the Post Office (Parcels) Act, 1882, were a reference to this section ; and
- (b) the reference therein to section three of the Post Office (Amendment) Act, 1935, were a reference to paragraph (a) of subsection (2) of this section.

Power to
detain postal
packets
containing
contraband.

17.—(1) Without prejudice to the last foregoing section, the Postmaster-General may detain any postal packet suspected to contain any goods chargeable with any customs duty which has not been paid or secured or any goods in the course of importation, exportation or removal into or out of the United Kingdom, the Channel Islands or the Isle of Man contrary to any prohibition or restriction for the time being in force with respect thereto under or by virtue of any enactment and may forward the packet to the Commissioners of Customs and Excise.

(2) Where any postal packet has been forwarded to the said Commissioners under this section they may—

- (a) in the presence of the person to whom the packet is addressed ; or
- (b) if, after notice in writing from them requiring his attendance left at or forwarded by post to the address on the packet, the addressee fails to attend, or if the address on the packet is outside the British postal area, then in his absence,

open and examine the packet.

(3) Where the said Commissioners open and examine a postal packet under this section, then—

- (a) if they find any such goods as aforesaid they may detain the packet and its contents for the purpose of taking proceedings with respect thereto ;
- (b) if they find no such goods, they shall either deliver the packet to the addressee upon his paying any postage and other sums chargeable thereon or, if he is absent, forward the packet to him by post.

18.—(1) All postage and other sums payable under this Act Recovery of postage.
in respect of postal packets may be recovered as a debt due to the Crown.

(2) Where any sum not exceeding twenty pounds is due from any person for postage or in respect of postal packets, that sum may, without prejudice to any other mode of recovery, be recovered in England, Wales or Northern Ireland summarily as a civil debt.

19.—(1) The official mark of any sum on any postal packet as due in respect of that packet, whether the mark is the mark of the Post Office or of any other postal administration and whether the sum is marked as being due to the Postmaster-General or otherwise, shall in every court in the British postal area be sufficient proof of the liability of the packet to the sum so marked unless the contrary is shown, and the sum shall be recoverable in any such court as postage due to Her Majesty. Post Office mark evidence of amount of postage, etc.

(2) In any proceedings for the recovery of postage or other sums due in respect of postal packets, the production of the packet in respect of which any such postage or sum is sought to be recovered having thereon a stamp or other endorsement of the Post Office or any other postal administration indicating that the packet has been refused or rejected or is unclaimed or cannot for any other reason be delivered, shall be sufficient proof of the fact indicated unless the contrary is shown.

(3) In any such proceedings as aforesaid, a certificate purporting to be signed by the Postmaster-General or on his behalf by an officer of the Post Office duly authorised by or under section eighty-three of this Act that any mark, stamp or endorsement is such a mark, stamp or endorsement as is mentioned in the foregoing provisions of this section shall be sufficient proof thereof unless the contrary is shown.

(4) In any such proceedings as aforesaid, the person from whom any postal packet in respect of which any postage or sum is sought to be recovered purports to have come shall, until the contrary is proved, be deemed to be the sender of the packet.

Money orders

Money orders. 20.—(1) So long as the Treasury think fit, the Postmaster-General may provide for the remission of small sums of money through post offices established by him by means of money orders, and may demand and receive for the use of Her Majesty in respect of those money orders such rates of poundage as may be fixed by Post Office regulations, and all poundage so received shall be deemed to be part of the Post Office revenue.

(2) Post Office regulations may make provision with respect to money orders, and to the payment thereof, and to the persons by or to whom they are to be paid, and the times and places at which and otherwise as to the mode in which they are to be paid.

(3) Subject to the said regulations, the Postmaster-General may repay the amount of any money order to the person to whom the order is issued, or his executors or administrators, whether the order remains in the possession of that person or not, and upon that repayment all liability on the part of the Postmaster-General, or any officer of the Post Office, or the Post Office revenue, or the Consolidated Fund, in respect of the money order shall, as against the payee of the money order and the holder thereof and every other person whomsoever, cease.

(4) No interest shall be payable in respect of any money order.

(5) No action or other legal proceeding shall be instituted against the Crown or against any officer of the Post Office or any person whomsoever in respect of any compliance with the said regulations, or otherwise in relation thereto, or in respect of the payment of any such money orders being refused or delayed by or on account of any accidental neglect, omission or mistake by or on the part of any officer of the Post Office, or for any other cause whatsoever, without fraud or wilful misbehaviour on the part of any officer of the Post Office.

Special
provisions as
to postal
orders.

21.—(1) The Postmaster-General, with the consent of the Treasury, may authorise his officers or any of them to issue money orders in a special form to be prescribed from time to time by him, and those money orders (in this Act referred to as "postal orders") shall be paid in the manner and subject to the conditions prescribed by Post Office regulations and the amounts for which they may be issued and the poundage payable in respect thereof shall be such as may be so prescribed:

Provided that—

- (a) the poundage payable in respect of a postal order for an amount not exceeding twenty-one shillings shall not exceed threepence;
- (b) after the expiration of such period after the date of the issue of a postal order as may be prescribed by Post Office regulations, the order shall be payable only on

payment in manner prescribed by the regulations of a commission equal to the amount of the original poundage.

(2) If the regulations so provide, the Postmaster-General may authorise any person holding office under the Crown to issue postal orders, and a person so authorised shall, for the purpose of the issue and payment of postal orders, be deemed to be an officer of the Postmaster-General and of the Post Office within the meaning of this Act.

(3) Any person acting as a banker in the British postal area who, in collecting in that capacity for any principal, has received payment or been allowed by the Postmaster-General in account in respect of any postal order, or of any document purporting to be a postal order, shall not incur liability to anyone except that principal by reason of having received the payment or allowance or having held or presented the order or document for payment; but this subsection shall not relieve any principal for whom any such order or document has been so held or presented of any liability in respect of his possession of the order or document or of the proceeds thereof.

(4) The enactments relating to the punishment of offences connected with stamp duties (including the enactments relating to the punishment of fraud) shall apply in like manner as if any poundage or commission chargeable for a postal order were stamp duty, and for the purposes of this subsection sections fourteen and fifteen of the Stamp Duties Management Act, 1891 (being provisions applicable to Scotland which relate to paper used for stamp duties and implements used in the manufacture of that paper) shall have effect as if the paper used for postal orders were paper provided by the Commissioners of Inland Revenue for receiving the impression of a die.

(5) The last foregoing subsection shall apply to the Channel Islands and to the Isle of Man as if the enactments therein mentioned extended to those islands in like manner as they extend to Scotland.

22.—(1) If any officer of the Post Office grants or issues any money order with a fraudulent intent, he shall be guilty of felony and be liable to imprisonment for a term not exceeding seven years. Issuing money orders with fraudulent intent.

(2) If any officer of the Post Office re-issues a money order previously paid, he shall be deemed to have issued the order with a fraudulent intent for the purposes of this section.

Forgery and
stealing of
money orders.

23.—(1) A money order shall be deemed to be an order for the payment of money and a valuable security within the meaning of this Act and of the Forgery Act, 1913, and of the Larceny Act, 1916, and of any other enactment relating to forgery or stealing which is for the time being in force in any part of the British postal area.

(2) If any person with intent to defraud obliterates, adds to or alters any such lines or words on a money order as would, in the case of a cheque, be a crossing of that cheque, or knowingly offers, utters or disposes of any money order with such fraudulent obliteration, addition or alteration, he shall be guilty of felony and be liable to the like punishment as if the order were a cheque.

Arrangements
with other
countries as
to money
orders.

24. Where an arrangement is made with a government or postal administration of any other country for the transmission of small sums through post offices under the charge of the Postmaster-General and the postal administration of the other country by means of money orders, the four last foregoing sections shall, so far as is consistent with the tenor thereof, and subject to any modifications prescribed by Post Office regulations, apply in like manner as if an order issued in pursuance of the arrangement, whether by an officer of the Post Office or by an officer of the other postal administration, were a money order within the meaning of those sections:

Provided that—

- (a) any Post Office regulations relating to any money orders issued in pursuance of any such arrangement as aforesaid may differ from the regulations relating to any other money orders; and
- (b) any money orders issued in pursuance of any such arrangements as aforesaid may be of such amount and in such form and subject to such conditions respecting poundage, commission, the periods during which they are payable, and other matters, as may be prescribed by Post Office regulations.

Conveyance of mail bags by ships and aircraft

Outward
bound ships.

25.—(1) Every master of a ship outward bound shall receive on board his ship every mail bag tendered to him by an officer of the Post Office for conveyance, and having received it shall deliver it, on arriving at the port or place of his destination, without delay.

(2) If the master of any such ship fails to comply with this section he shall be liable on summary conviction to a fine not exceeding two hundred pounds.

26.—(1) The three next following subsections shall apply Inward bound ships and aircraft. in relation to a ship or aircraft inward bound carrying any postal packets within the exclusive privilege of the Postmaster-General, not being packets to which the next following section applies.

(2) The master of the ship or commander of the aircraft shall collect all such postal packets on board his ship or aircraft and enclose them in some bag or other covering sealed with his seal and addressed to the Postmaster-General and shall without delay deliver them to the proper officer of the Post Office demanding them or, if no demand is made by that officer, then at the post office with which he can first communicate.

(3) If the master of the ship or the commander of the aircraft does not duly comply with the provisions of the last foregoing subsection he shall be liable on summary conviction to a fine not exceeding two hundred pounds.

(4) The master of the ship or commander of the aircraft shall not break bulk on board his ship or aircraft in any port or place before he has complied with the provisions of subsection (2) of this section and if he does so he shall be liable on summary conviction to a fine not exceeding twenty pounds.

(5) An officer of customs and excise may refuse to permit bulk to be broken on board any inward bound ship or aircraft until he is satisfied that any postal packets brought in that ship or aircraft which are required to be delivered under subsection (2) of this section have been so delivered.

(6) An officer of customs and excise may search any inward bound ship or aircraft for, and seize, any postal packets within the exclusive privilege of the Postmaster-General and forward any such packets seized to the nearest post office ; and subsection (3) of section eight of this Act shall apply in relation to any packet so forwarded.

27.—(1) The two next following subsections shall apply to any letter addressed to the owner, charterer or consignee of a ship or aircraft inward bound or to the owner, consignee or shipper of any goods carried in such a ship or aircraft, being a letter which, not being excepted from the exclusive privilege of the Postmaster-General, complies with the following conditions, that is to say— Owners' letters.

- (a) that the addressee is described in the address or super-
scription on the letter as such owner, charterer, con-
signee or shipper ; and
- (b) in the case of a letter addressed to an owner, consignee
or shipper of goods, that it also appears by the ship's
manifest or by the manifest and declaration of the air-
craft that the addressee has goods on board the ship
or aircraft.

(2) Any such letter required to be delivered to a person at the place of arrival of the ship or aircraft shall be delivered to that person by the master of the ship or the commander of the aircraft free of inland postage and that person shall be entitled to the delivery thereof before the delivery of any other postal packets to the Post Office.

(3) Any such letter required to be delivered to a person at any other place in the British postal area shall be delivered by post on payment of inland postage only.

(4) If any person with intent to evade any postage falsely subscribes any letter as being for the owner, charterer or consignee of the ship or aircraft conveying the letter or for the owner, consignee or shipper of goods carried in that ship or aircraft, he shall for each offence be liable on summary conviction to a fine not exceeding ten pounds.

Retention of
postal packets
after delivery
of part thereof
to Post Office.

28. If any person, being the master or commander, one of the officers or crew, or a passenger, of a ship or aircraft inward bound, knowingly has in his baggage or in his possession or custody any postal packet, except a postal packet not within the exclusive privilege of the Postmaster-General, after the master of the ship or commander of the aircraft has sent any part of the postal packets on board the ship or aircraft to the Post Office, he shall for every such packet be liable on summary conviction to a fine not exceeding five pounds; and if he detains any such packet after demand made either by an officer of customs and excise or by any person authorised by the Postmaster-General to demand the postal packets on board the ship or aircraft, he shall for every postal packet detained be liable on summary conviction to a fine not exceeding ten pounds.

Carriage of
parcels by
coasting
ships.

29.—(1) Without prejudice to section forty-two of this Act, in the case of any mechanically-propelled ship which carries on regular communications between a port in the United Kingdom and any other port or place in the United Kingdom, or which is a home-trade ship within the meaning of the Merchant Shipping Act, 1894, not being a ship owned or worked by railway undertakers, the Postmaster-General may require the person by whom that ship is owned or worked to carry parcels in that ship.

(2) The remuneration for any services rendered by a ship under this section shall be determined by agreement between the Postmaster-General and the person owning or working the ship or, in default of agreement, by the Transport Tribunal; and any remuneration so determined shall be paid direct to that person.

30. Without prejudice to the last foregoing section, Post Office regulations may provide for the allowance to owners or masters of ships or owners or commanders of aircraft in respect of postal packets or any description thereof conveyed by them on behalf of the Post Office, and also to pilots, crew and others in respect of postal packets or any description thereof brought by them to any post office from any ship or aircraft, of such gratuities under such conditions and restrictions as the Postmaster-General may from time to time think fit.

31.—(1) Nothing in any enactment passed after the twenty-eighth day of March, nineteen hundred and thirty-five which incorporates the Harbours, Docks and Piers Clauses Act, 1847, and nothing in any scheme or order made under or confirmed by any such enactment, shall extend to charge with rates or duties, or to regulate or subject to any control, any ship employed by or under the authority of the Postmaster-General for the conveyance under contract of postal packets as defined by this Act, not being a ship also conveying passengers or goods for hire or reward, or any mail bag as so defined conveyed by any such ship or by any other ship whatsoever.

(2) The said Act of 1847, as incorporated with any such enactment, scheme or order as aforesaid, shall accordingly have effect as if in section twenty-eight thereof for the words from "or any packet boat" to "any such packet boat or packet" there were substituted the words "or any vessel employed by or under the authority of the Postmaster-General for the conveyance under contract of postal packets as defined by the Post Office Act, 1953, not being a vessel also conveying passengers or goods for hire or reward, or any mail bag as so defined conveyed by any such vessel."

32.—(1) If the master of a ship or the commander of an aircraft—

(a) opens a sealed mail bag with which he is entrusted for conveyance; or

(b) takes out of a mail bag with which he is entrusted for conveyance any postal packet or other thing,

he shall be liable on summary conviction to a fine not exceeding two hundred pounds.

(2) If any person to whom postal packets have been entrusted by the master of a ship or the commander of an aircraft to deliver to the Post Office, breaks the seal, or in any manner wilfully opens them, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

Remuneration of owners and masters or commanders of ships or aircraft.

Exemption of certain ships from harbour rates etc.

Penalty for opening of mail bag by master or commander of ship or aircraft.

Conveyance of mail bags by railway undertakers

Power to
require
provision of
regular mail
trains.

33.—(1) The Postmaster-General may by notice in writing require any railway undertakers, as from the day specified in the notice (being not less than twenty-eight days from the service thereof), to convey either by ordinary trains or, if necessary, by special trains, at such times as the Postmaster-General may direct, all mail bags tendered to the undertakers, together with any officers of the Post Office accompanying those mail bags.

(2) Any railway undertakers on whom any such notice is served shall, as from the day specified therein, provide at their own cost such vehicles attached to ordinary trains, or, as the case may be, such special trains, as may be sufficient for the conveyance of mail bags to the satisfaction of the Postmaster-General (in this Act referred to as "regular mail trains") and shall in all respects comply with the notice, and shall receive, take up, deliver and leave any such mail bags and officers of the Post Office as aforesaid at such places on the railway, on such days, at such times in the day, and subject to all such reasonable requirements and restrictions as to speed of travelling, places, times and duration of stoppages, and times of arrival, as the Postmaster-General may from time to time direct.

(3) The rate of speed of any regular mail train shall not be altered unless six months' notice of the intended alteration has been given to the Postmaster-General.

(4) Notwithstanding anything in the two last foregoing subsections, a regular mail train shall not be required to travel at any time on any part of a railway at a speed in excess of the maximum speed for the time being prescribed by the railway undertakers for the safe running of trains on that part of the railway.

Additional
provisions
as to regular
mail train
services.

34.—(1) The Postmaster-General may, if he thinks fit, in relation to any regular mail train—

(a) require that the whole of the inside of any vehicle used for the conveyance of mail bags shall be exclusively appropriated for that purpose ;

(b) where the train is a special train, require by notice in writing that the whole of the train shall be appropriated to the service of the Post Office to the exclusion of all other traffic except such as he may sanction.

(2) The Postmaster-General may require any railway undertakers to provide and equip separate vehicles fitted up as the Postmaster-General may direct for the purpose of sorting postal packets therein (in this Act referred to as "sorting carriages"), and the railway undertakers shall attach sorting carriages to such regular mail trains as the Postmaster-General may direct.

(3) Where the Postmaster-General desires to send mail bags, together with any officers of the Post Office accompanying them, by any railway in Her Majesty's vehicles instead of in vehicles

provided by the railway undertakers, the railway undertakers shall, at the request of the Postmaster-General, cause those vehicles, together with any officers of the Post Office and mail bags carried therein, to be conveyed by the usual or proper trucks or frames on their railway.

(4) The royal arms shall be painted on the outside of every sorting carriage instead of any other marking prescribed by law in respect of railway vehicles; but the want of the royal arms on any vehicle belonging to or used by the Post Office shall not form an objection to the running of that vehicle on any railway.

(5) For the greater security of mail bags conveyed by regular mail trains, the railway undertakers shall comply with such reasonable directions respecting the conveyance, delivery and leaving of mail bags and officers of the Post Office accompanying them and vehicles used for the conveyance thereof as the Postmaster-General may from time to time give, and the undertakers shall be responsible for any failure on the part of their officers or servants to comply with any such directions:

Provided that no officer of the Post Office shall interfere with or give orders to an engine driver or other person having charge of a railway engine, but if any cause of complaint arises it shall be stated to the officer of the railway undertakers having charge of the train or to the chief officer of the undertakers on duty at any station upon the railway.

35. Railway undertakers shall be entitled to be paid by the Postmaster-General such reasonable remuneration for any regular mail train services performed by them under this Act as may be agreed between the Postmaster-General and the undertakers or, in default of agreement, as may be determined by the Transport Tribunal: Remuneration for regular mail train services.

Provided that the performance of any such services shall not be suspended, postponed or deferred by reason only that the remuneration to be paid for the services has not been either agreed or determined as aforesaid.

36.—(1) Notwithstanding any agreement or award as to the remuneration to be paid by the Postmaster-General to any railway undertakers for any regular mail train services performed by them, the Postmaster-General may, by notice in writing— Alteration of regular mail train services.

- (a) require the undertakers, as from the day specified in the notice (being not less than twenty-eight days from the service thereof), to render such additional services as may be specified therein; or
- (b) direct that, as from the day specified in the notice, those services or such part thereof as may be so specified shall be discontinued.

(2) As from the day specified in any such notice, any agreement or award as to remuneration for the regular mail train services provided by the railway undertakers shall cease to have effect, and the remuneration to be paid for any such services performed on or after that day as increased or reduced by such a requirement or direction as aforesaid shall be such as may be fixed by a new agreement between the Postmaster-General and the undertakers or, in default of agreement, as may be determined by the Transport Tribunal:

Provided that the provision of any services as so increased or reduced shall not be suspended, postponed or deferred by reason only that the remuneration to be paid therefor has not been either agreed or determined as aforesaid.

(3) Where any dispute as to remuneration is referred to the Transport Tribunal under the last foregoing subsection, that tribunal may award any compensation they consider reasonable to be paid to the railway undertakers for any loss that may be occasioned to the undertakers by the alteration or discontinuance of the services previously performed by them by means of any train or vehicle specially required by the Postmaster-General to be forwarded for the conveyance of mail bags.

(4) Where the day specified in any notice given under this section for the discontinuance in whole or in part of any regular mail train services is less than six months from the service of the notice, then, if the services are directed to be discontinued without cause stated or for any stated cause other than the default of the undertakers in the performance of any of the services required of them by the Postmaster-General or the breach by the undertakers of any agreement with the Postmaster-General, the Postmaster-General shall pay to the undertakers such full and fair compensation for all loss occasioned by the discontinuance as may be agreed between the Postmaster-General and the undertakers or, in default of agreement, as may be determined by the Transport Tribunal.

Review of
agreements
and awards
as to regular
mail train
services.

37. Where any agreement or award fixing the amount of remuneration to be paid to any railway undertakers for regular mail train services performed by them has been in force for a period of three years, the undertakers may, if they consider themselves aggrieved by the terms fixed by the agreement or award, by notice under their common seal require that the agreement or award shall be referred to the Transport Tribunal in order that it may be determined whether any and if so what alteration ought to be made therein:

Provided that the provision of any regular mail train services shall not be interrupted or impeded by reason of any such reference to the Transport Tribunal.

38.—(1) Railway undertakers shall, whether or not any notice requiring the provision of regular mail trains has been given to them by the Postmaster-General under this Act, convey by any train all mail bags tendered to them for conveyance by that train, whether or not those mail bags are accompanied by an officer of the Post Office, and shall afford all reasonable facilities for the receipt and delivery of mail bags at any of their stations without requiring them to be booked or interposing any other delay, and where the mail bags are accompanied by an officer of the Post Office shall permit that officer to receive and deliver them at any station and render him such assistance as he may require.

Conveyance of mail bags by railway otherwise than as part of regular mail train services.

(2) Railway undertakers shall be entitled to be paid by the Postmaster-General such reasonable remuneration for any services performed by them under the foregoing subsection as may be agreed between the Postmaster-General and the undertakers or, in default of agreement, as may be determined by the Transport Tribunal.

(3) The Postmaster-General may send any officer of the Post Office with mail bags not exceeding the weight of luggage allowed to any other passenger (or subject to the general rules of the railway undertakers for any excess of that weight) by any passenger train upon the same conditions as any other passenger ; and in that case the undertakers shall not be responsible for the safe custody or delivery of the mail bags.

39. Railway undertakers shall not make any bye-laws, orders, rules or regulations which militate against or are contrary or repugnant to any of the provisions of this Act relating to the conveyance of mails by railway, and if any railway undertakers make any such bye-laws, orders, rules or regulations, whether before or after the Postmaster-General has signified his intention that mail bags or vehicles for their carriage shall be conveyed by their railway, the bye-laws, orders, rules or regulations shall, so far as they militate against or are contrary or repugnant to any of the said provisions, be void.

Bye-laws, etc. of railway undertakers.

40. Any notice authorised to be served by the Postmaster-General on railway undertakers under this Act may be served either—

Service of notices on railway undertakers.

- (a) by delivering it to any director of the railway undertaking or to the secretary or clerk thereof or, in the case of the British Transport Commission, to such person as the Commission may have appointed in that behalf or, in default of any such appointment, to the secretary thereof ; or
- (b) by leaving it at any station belonging to the undertakers.

Offences
relating to
conveyance
of mails by
railway.

41. If any railway undertakers—

- (a) refuse or neglect to convey any mail bags tendered to them for that purpose by any officer of the Post Office ;
- (b) refuse to convey on their railway any sorting carriage or other vehicle when required so to do by the Postmaster-General under the provisions of this Act ;
- (c) refuse or neglect to receive, take up, deliver or leave any mail bags, officers of the Post Office, sorting carriages or other vehicles at such places, at such times, on such days, and subject to such reasonable requirements and restrictions as to speed of travelling, places, times, and duration of stoppages, as the Postmaster-General may direct ; or
- (d) fail to observe such directions respecting the conveyance of mail bags, sorting carriages and other vehicles on their railway as the Postmaster-General may give,

the undertakers shall be liable on summary conviction to a fine not exceeding twenty pounds.

Conveyance
of mail bags
on ships used
by railway
undertakers.

42. Where railway undertakers—

- (a) own or work ; or
- (b) are parties to any arrangement for using, maintaining or working,

any mechanically-propelled ship for the purpose of carrying on communications between any towns or ports, whether situated in the British postal area or not, the provisions of this Act relating to the conveyance by railway of mail bags and any officers of the Post Office accompanying them shall, subject to the necessary modifications, extend to the conveyance of mail bags and any such officers by that ship :

Provided that, without prejudice to section twenty-nine of this Act, paragraph (b) of this section shall not apply in relation to the conveyance of parcels.

Extension of
meaning of
expression
“ railway.”

43.—(1) For the purposes of this Act the expression “ railway ” includes any tramroad or tramway authorised by any enactment passed after the first day of January, eighteen hundred and ninety-three which is not a tramway within the meaning of the next following section.

(2) A tramroad or tramway shall be deemed to be authorised as aforesaid if its construction was first authorised or the time for its construction was extended by an enactment passed after the date aforesaid.

(3) In this section the expression “ enactment ” includes any order confirmed by an Act of Parliament and a certificate granted under the Railways Construction Facilities Act, 1864.

*Conveyance of mail bags by tramways and
public service vehicles*

- 44.—(1) Subject to the provisions of the next following section, the Postmaster-General may by notice in writing require—
- (a) any tramway undertakers to whom this section applies, in respect of any tramway owned or worked by them ;
 - (b) the British Transport Commission in respect of any services of public service vehicles provided by them ;
 - (c) any local authority in Great Britain authorised to run public service vehicles under Part V of the Road Traffic Act, 1930, in respect of services of such vehicles on any route authorised under the said Part V,

Power to
require
services by
tramways and
certain public
service
vehicles.

to perform such reasonable services with regard to the conveyance of mail bags as the Postmaster-General may from time to time direct.

(2) The remuneration for any services performed in pursuance of this section shall be such as may be from time to time determined by agreement between the Postmaster-General and the person performing the services or, in default of agreement, by the Transport Tribunal.

(3) In the case of a tramway upon which goods as well as passengers and parcels are carried, the provisions of this Act relating to the conveyance by railway of mail bags and any officers of the Post Office accompanying them shall, subject to the provisions of the next following section, apply in like manner as if the tramway were a railway.

(4) The tramway undertakers to whom this section applies are undertakers authorised by an enactment passed after the first day of January, eighteen hundred and ninety-three to carry on a tramway undertaking, and undertakers shall be deemed to be so authorised if the construction of the tramway was first authorised or the time for its construction was extended by an enactment passed after the date aforesaid.

(5) For the purposes of this and the next following section—

- (a) the expression “ tramway ” means a tramway authorised by any enactment to be constructed wholly along public roads or streets without any deviation therefrom ;
- (b) the expression “ enactment ” includes any order confirmed by an Act of Parliament and a certificate granted under the Railways Construction Facilities Act, 1864.

Additional provisions as to conveyance of mail bags by tramways and public service vehicles.

45.—(1) Where any tramway vehicle or, in Great Britain, any public service vehicle is conveying or intended to convey passengers only and not goods or parcels, nothing in the last foregoing section shall authorise the Postmaster-General to require mail bags to be conveyed therein either—

(a) unaccompanied by an officer of the Post Office travelling as a passenger ; or

(b) in excess of the maximum weight for the time being fixed for the luggage of ordinary passengers,

(2) Where any tramway vehicle is conveying or intended to convey parcels only, nothing in the last foregoing section shall authorise the Postmaster-General to require mail bags to be carried therein in excess of such maximum weight as is for the time being fixed for ordinary parcels, or, if that maximum appears to the Postmaster-General to be so low as to exclude him from availing himself of the use of any such vehicle, then as is for the time being fixed by agreement or, in default of agreement, by the Transport Tribunal.

(3) Where any tramway vehicle or, in Great Britain, any public service vehicle is conveying or intended to convey both parcels and passengers but not goods, nothing in the last foregoing section shall authorise the Postmaster-General to require mail bags to be carried therein in excess of the maximum weight for the time being fixed for ordinary parcels, or for the luggage of ordinary passengers, whichever is the greater.

(4) Mail bags carried in a tramway vehicle conveying passengers or, in Great Britain, in a public service vehicle shall be so carried as not to inconvenience the passengers, so, however, that the custody of the mail bags by any officer of the Post Office accompanying them shall not be interfered with.

(5) Nothing in this section shall be taken as prejudicing the operation of section two of the Motor Vehicles and Road Traffic Act (Northern Ireland), 1930 (which relates to the conveyance of mails by public service vehicles in Northern Ireland).

Land

Holding of land by Postmaster-General.

46.—(1) For the purpose of acquiring and holding land the Postmaster-General for the time being shall be a corporation sole by the name of Her Majesty's Postmaster-General, and by that name shall have perpetual succession and an official seal.

(2) All land vested in the Postmaster-General shall be held in trust for Her Majesty for the purposes of the Post Office.

(3) In this and the three next following sections the expression "land" includes any estate or interest in or over land and in the application of the said sections to Scotland—

- (a) any reference to the acquisition or disposal of land includes a reference to the acquisition or disposal of land by feu ;
- (b) any reference to exchange includes a reference to excamb or excambion ;
- (c) for any reference to an easement there shall be substituted a reference to a servitude.

47.—(1) The Postmaster-General may, with the consent of the Treasury, acquire land for the purposes of the Post Office by purchase, exchange, lease, gift or in any other manner whatsoever. Power of Postmaster-General to acquire land.

(2) The provisions of the First Schedule to this Act shall have effect with respect to any acquisition of land in the United Kingdom under the foregoing subsection.

(3) The Chancellor and Council of the Duchy of Lancaster may, if they think fit, agree with the Postmaster-General for the sale, and absolutely make sale, for such sum of money as appears to the said Chancellor and Council to be sufficient consideration for the same, of any land belonging to Her Majesty in right of the said duchy which the Postmaster-General may deem it expedient, with the consent of the Treasury, to purchase for the purposes of the Post Office, and the land may be assured to the Postmaster-General and the money shall be paid and dealt with as if the land had been sold under the authority of the Duchy of Lancaster Lands Act, 1855.

(4) In the application of this section to the Isle of Man, any question as to whether any other land is injuriously affected by the use by the Postmaster-General of any land acquired by him thereunder, or as to the amount of compensation payable in respect of any such injurious affection, shall, notwithstanding that the land acquired may not have been compulsorily acquired, be determined by arbitration under and in accordance with the Public Authorities Acquisition of Land Acts, 1923 to 1948 (being Acts of the legislature of the Isle of Man) unless the parties agree on some other method of determination.

(5) Nothing in this section shall prejudice any right conferred on the Postmaster-General by the Requisitioned Land and War Works Act, 1945, the Town and Country Planning Act, 1947, or the Town and Country Planning (Scotland) Act, 1947, to acquire land compulsorily.

Power of
Postmaster-
General to
dispose of
land.

48.—(1) The Postmaster-General may, with the consent of the Treasury, sell, exchange, lease, or surrender on any terms, any land for the time being vested in him, or may dedicate any such land by deed for the use of the public (whether as a highway or otherwise), and on any such exchange may give or receive any money for equality of exchange, and may sell either by public auction or by private contract, and may make any stipulations, as to title or otherwise, in any conditions of sale or contract for sale or exchange, and may buy in at any auction, and may rescind or vary any contract for sale or exchange, and may resell or re-exchange any such land.

(2) On any sale, exchange, lease, surrender or dedication, the Postmaster-General may stipulate for, create or reserve all such rights or easements as may be deemed proper.

Consent of
Treasury to
acquisition
or disposal
of land.

49.—(1) The consent of the Treasury to the acquisition, sale, exchange, lease, surrender or dedication of land by the Postmaster-General may be given either generally for any class of case or for any particular transaction.

(2) A person dealing with the Postmaster-General in respect of land or rights in or over land, whether as vendor, lessor, purchaser, lessee or otherwise, shall not be bound or entitled to enquire whether the consent of the Treasury has been given to that or any other dealing, or whether that or any other dealing is in fact authorised by any Act relating to the Post Office.

Extension of postal facilities and accommodation

Indemnity on
account of
extending
Post Office
accommoda-
tion.

50. The Postmaster-General may contract with, or take security from, any person applying to him to establish any post or telegraph office, or to extend the accommodations of the postal or telegraphic services to any place, for indemnifying the Postmaster-General against any loss he may sustain thereby, and the indemnity may be either for the whole or any part of the loss sustained, and for such time as the Postmaster-General may think necessary.

Power of local
authority to
contribute
towards new
post office or
extra postal
facilities.

51.—(1) Where the council of any borough or urban district consider that it would be beneficial to the inhabitants of the borough or district that any new post office should be on a more expensive site, or of a larger size, or of a more ornate building, or otherwise of a more expensive character than the Postmaster-General would otherwise provide, the council may contribute towards the new post office, either by a grant of money or, with the consent of the Minister of Housing and Local Government, by the appropriation of land belonging to the council or by the purchase of land for the purpose.

(2) Where the council of any borough or urban district consider that it would be beneficial to the inhabitants of the borough or district that any post or telegraph office should be established, or any additional postal or other facilities should be provided, by the Postmaster-General in or for the purposes of the borough or district, the council may undertake to pay to the Postmaster-General any loss he may sustain by reason of the establishment or maintenance of the office or the provision of the facilities.

(3) Where the council of any rural district, or the parish council of a parish, or in the case of a parish not having a parish council the parish meeting, consider that it would be for the benefit, in the case of a rural district council, of any contributory place or places within their district or, in the case of a parish council or parish meeting, of their parish, that any post or telegraph office should be established, or any additional postal or other facilities should be provided, by the Postmaster-General whether within or without the area to be benefited, that council or meeting may undertake to pay to the Postmaster-General any loss he may sustain by reason of the establishment or maintenance of the office or the provision of the facilities; and any expenses incurred by a rural district council in pursuance of such an undertaking may be defrayed as special expenses chargeable on the contributory place or places to be benefited:

Provided that a rural district council shall not exercise their powers under this subsection as respects an office established or facilities provided outside a contributory place proposed to be charged unless the parish council, or if there is no parish council the parish meeting, of any parish wholly or partly situated in the contributory place consent to the exercise of the powers.

(4) The council of a borough or urban district may borrow for the purposes of subsection (1) of this section.

(5) The foregoing provisions of this section shall, in their application to Scotland, have effect subject to the following modifications:—

- (a) for the reference to the Minister of Housing and Local Government there shall be substituted a reference to the Secretary of State; for references to a borough or urban district and to the council thereof there shall be respectively substituted references to a burgh and to the town council thereof; for references to a rural district and to the council thereof there shall be respectively substituted references to a county and to the county council thereof; for references to a parish council and to a parish there shall be respectively substituted references

to a district council and to the district of such a council ; for any reference to a contributory place there shall be substituted a reference to such a district ; and references to parish meetings shall be omitted ;

(b) subsection (2), and subsection (3) from the words " and any " onwards, shall be omitted ;

(c) any expenses incurred by a county council in pursuance of an undertaking given under subsection (3) shall be defrayed out of a rate levied only in the district of the district council in respect of which the expenses are incurred ;

(d) nothing in subsection (3) shall authorise the establishment of an office or the provision of facilities outside the area to be benefited.

(6) This section shall, in its application to Northern Ireland, have effect subject to the following modifications :—

(a) for the reference in subsection (1) to the Minister of Housing and Local Government there shall be substituted a reference to the Ministry of Health and Local Government for Northern Ireland ;

(b) so much of subsection (3) as relates to the powers of parish councils and parish meetings, and the words in that subsection from " and any " onwards, shall be omitted ; and the powers under that subsection of a rural district council shall be limited to the establishment of offices and the provision of facilities within the place to be benefited ;

(c) any expenses incurred under this section by the council of a borough may be paid out of the borough fund or borough rate ;

(d) any expenses incurred under this section by the council of an urban district other than a borough may be paid out of the rate out of which the general expenses of the council under the Public Health (Ireland) Act, 1878, are defrayed ;

(e) any expenses incurred by a rural district council in pursuance of an undertaking under this section may be defrayed as expenses legally incurred in respect of the contributory place or places and shall be apportioned between those places, if more than one, and sections two hundred and thirty-two and two hundred and thirty-three of the Public Health (Ireland) Act, 1878, shall apply accordingly ;

(f) subsection (4) shall be omitted.

(7) This section shall, in its application to the Isle of Man, have effect subject to the following modifications:—

- (a) for the reference in subsection (1) to the Minister of Housing and Local Government there shall be substituted a reference to the Isle of Man Local Government Board; and for the references in that subsection to a borough or urban district and to the council thereof there shall be respectively substituted references to a local government district and to the local authority;
- (b) any expenses incurred under subsection (1) may be paid as expenses of the local authority out of the district fund, and any money may be borrowed for the purposes of this section in the same manner and subject to the same conditions as if those purposes were purposes of the Local Government Acts, 1916 to 1952, being Acts of the legislature of the Isle of Man, or any other Act of that legislature amending those Acts;
- (c) subsections (2) to (4) shall be omitted.

General Offences

52. If any person—

- (a) steals a mail bag;
- (b) steals any postal packet in course of transmission by post;
- (c) steals any chattel, money or valuable security out of a postal packet in course of transmission by post; or
- (d) stops a mail with intent to rob or search the mail,

he shall be guilty of felony and be liable to imprisonment for life or for any shorter term.

Stealing
mail bag or
postal packet.

53. If any person unlawfully takes away or opens a mail bag sent by any ship, vehicle or aircraft employed by or under the Post Office for the transmission of postal packets under contract, or unlawfully takes a postal packet in course of transmission by post out of a mail bag so sent, he shall be guilty of felony and be liable to imprisonment for a term not exceeding fourteen years.

Unlawfully
taking away
or opening
mail bag.

54. If any person receives any mail bag, or any postal packet or any chattel or money or valuable security, the stealing, taking, embezzling or secreting of which amounts to a felony under this Act, knowing it to have been so feloniously stolen, taken, embezzled or secreted, and to have been sent, or to have been intended to be sent, by post, he shall be guilty of felony and be liable to the same punishment as if he had himself stolen, taken, embezzled or secreted it, and may be

Receiver of
stolen mail
bag or
postal packet.

proceeded against and convicted whether the principal offender has or has not been previously convicted or is or is not amenable to justice.

Fraudulent
retention of
mail bag or
postal packet.

55. Any person who fraudulently retains, or wilfully secretes or keeps, or detains, or who, when required by an officer of the Post Office, neglects or refuses to deliver up—

- (a) any postal packet which is in course of transmission by post and which ought to have been delivered to any other person ; or
- (b) any postal packet in course of transmission by post or any mail bag which has been found by him or by any other person,

shall be guilty of a misdemeanour and be liable to a fine and to imprisonment.

Criminal
diversion of
letters from
addressee.

56.—(1) If any person not in the employment of the Postmaster-General wilfully and maliciously, with intent to injure any other person, either opens or causes to be opened any postal packet which ought to have been delivered to that other person, or does any act or thing whereby the due delivery of the packet to that other person is prevented or impeded, he shall be guilty of a misdemeanour and be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding six months.

(2) Nothing in this section shall apply to a person who does any act to which this section applies where he is parent, or in the position of parent or guardian, of the person to whom the postal packet is addressed.

(3) A prosecution shall not be instituted in pursuance of this section in England or Wales except by the direction or with the consent of the Postmaster-General.

(4) In this section the expression “postal packet” means a postal packet which is in course of transmission by post or which has been delivered by post.

Stealing,
embezzlement,
destruction
etc. by officer
of Post Office
of postal
packet.

57. If any officer of the Post Office steals, or for any purpose whatever embezzles, secretes or destroys, a postal packet in course of transmission by post, he shall be guilty of felony and be liable to imprisonment for a term not exceeding seven years or, if the postal packet contains any chattel, money or valuable security, to imprisonment for life or for any shorter term.

58.—(1) If any officer of the Post Office, contrary to his duty, opens, or procures or suffers to be opened, any postal packet in course of transmission by post, or wilfully detains or delays, or procures or suffers to be detained or delayed, any such postal packet, he shall be guilty of a misdemeanour and be liable to imprisonment or to a fine, or to both : Opening or delaying of postal packets by officers of the Post Office.

Provided that nothing in this section shall extend to the opening, detaining or delaying of a postal packet returned for want of a true direction, or returned by reason that the person to whom it is directed has refused it, or has refused or neglected to pay the postage thereof, or that the packet cannot for any other reason be delivered, or to the opening, detaining or delaying of a postal packet under the authority of this Act or in obedience to an express warrant in writing under the hand of a Secretary of State.

(2) In the application of the foregoing subsection to Northern Ireland, for the reference to a Secretary of State there shall be substituted a reference to the Governor of Northern Ireland ; and in the application of that subsection to the Isle of Man, for the reference to a warrant in writing under the hand of a Secretary of State there shall be substituted a reference to a warrant in writing under the hand of the Lieutenant-Governor issued with the sanction of a Secretary of State.

59. If any person employed to convey or deliver a mail bag, or a postal packet in course of transmission by post, or to perform any other duty in respect of a mail bag or such a postal packet— Carelessness, negligence or misconduct of persons employed in carrying or delivering mail bags, postal packets, etc.

- (a) without authority whilst so employed, or whilst the mail bag or postal packet is in his custody or possession, leaves it, or suffers any person, not being the person in charge thereof, to ride in the place appointed for the person in charge thereof in or upon any vehicle used for the conveyance thereof, or to ride in or upon a vehicle so used and not licensed to carry passengers, or upon a horse used for the conveyance on horseback thereof ;
- (b) is guilty of any act of drunkenness whilst so employed ;
- (c) is guilty of carelessness, negligence or other misconduct whereby the safety of the mail bag or postal packet is endangered ;
- (d) without authority collects, receives, conveys or delivers a postal packet otherwise than in the ordinary course of post ;
- (e) gives any false information of an assault or attempt at robbery upon him ; or

- (f) loiters on the road or passage, or wilfully misspends his time so as to retard the progress or delay the arrival of a mail bag or postal packet in the course of transmission by post, or does not use due care and diligence safely to convey a mail bag or postal packet at the due rate of speed,

he shall be liable on summary conviction to a fine not exceeding twenty pounds.

Prohibition of placing injurious substances in or against post office letter boxes or telephone kiosks.

60.—(1) A person shall not place or attempt to place in or against any post office letter box or telephone kiosk or cabinet any fire, match, light, explosive substance, dangerous substance, filth, noxious or deleterious substance, or fluid, and shall not commit a nuisance in or against any post office letter box or telephone kiosk or cabinet, and shall not do or attempt to do anything likely to injure the box, kiosk or cabinet or its appurtenances or contents.

(2) If any person acts in contravention of this section, he shall be liable on summary conviction to a fine not exceeding ten pounds, or on conviction on indictment to imprisonment for a term not exceeding twelve months.

Prohibition of affixing placards, notices, etc. on post office letter boxes, etc.

61.—(1) A person shall not without due authority affix or attempt to affix any placard, advertisement, notice, list, document, board or thing in or on, or paint or tar, any post office, post office letter box, telegraph post or other property belonging to or used by or on behalf of the Postmaster-General, and shall not in any way disfigure any such office, box, post or property.

(2) If any person acts in contravention of this section, he shall be liable on summary conviction to a fine not exceeding forty shillings.

Prohibition of imitation of post office stamps, envelopes, forms and marks.

62.—(1) A person shall not without due authority—

- (a) make, issue, or send by post or otherwise any envelope, wrapper, card, form or paper in imitation of one issued by or under the authority of the Postmaster-General or of any other postal administration, or having thereon any words, letters or marks which signify or imply or may reasonably lead the recipient thereof to believe that a postal packet bearing them is sent on Her Majesty's service;

- (b) make on any envelope, wrapper, card, form or paper for the purpose of being issued or sent by post or otherwise, or otherwise used, any mark in imitation of or similar to or purporting to be any stamp or mark of any post office under the Postmaster-General or

under any other postal administration, or any words, letters or marks which signify or imply or may reasonably lead the recipient thereof to believe that a postal packet bearing them is sent on Her Majesty's service ;
or

- (c) issue or send by post or otherwise any envelope, wrapper, card, form or paper so marked.

(2) If any person acts in contravention of this section, he shall be liable on summary conviction to a fine not exceeding forty shillings.

63.—(1) A person shall not, except for such purposes, and subject to such conditions as may be prescribed by Post Office regulations— Prohibition of fictitious stamps.

- (a) make, knowingly utter, deal in or sell any fictitious stamp ;
(b) have in his possession, unless he shows a lawful excuse, any fictitious stamp ; or
(c) make or, unless he shows a lawful excuse, have in his possession any die, plate, instrument or materials for making any fictitious stamp.

(2) A person shall not knowingly use for the purposes of the Post Office any fictitious stamp.

(3) If any person acts in contravention of the foregoing provisions of this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds :

Provided that, in England or Wales, a prosecution shall not be instituted under this subsection except by order of the Postmaster-General.

(4) Any stamp, die, plate, instrument or materials found in the possession of any person in contravention of subsection (1) of this section may be seized and shall be forfeited.

(5) The importation into the United Kingdom or the Isle of Man—

- (a) of any facsimile, imitation or representation, whether on paper or otherwise, of any stamp for denoting any rate of postage, whether of the British postal area or of any country outside that area ; or
(b) of any die, plate, instrument or materials for making such a facsimile, imitation or representation,

is hereby prohibited.

(6) In this section the expression "fictitious stamp" means any facsimile, imitation or representation, whether on paper or otherwise, of any stamp for the time being authorised or required to be used for the purposes of the Post Office or of any stamp for denoting a current rate of postage of any country outside the British postal area.

(7) Notwithstanding anything in section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeal and re-enactment), any reference to section sixty-five of the Post Office Act, 1908, in, or in any regulations made under, any other enactment applying or adapting that section for the purposes of that enactment or of any such regulations shall, unless the contrary intention appears, be construed as a reference to the provisions of that section as originally enacted, being the provisions set out in the Second Schedule to this Act.

Prohibition
of false
notice as to
reception of
letters, etc.

64.—(1) A person shall not without the authority of the Postmaster-General place or maintain in or on any house, wall, door, window, box, post, pillar or other place belonging to him or under his control, any of the following words, letters or marks, that is to say—

- (a) the words "post office" or "postal telegraph office" or "public telephone call office";
- (b) the words "letter box" accompanied with words, letters or marks which signify or imply or may reasonably lead the public to believe that it is a post office letter box; or
- (c) any words, letters or marks which signify or imply or may reasonably lead the public to believe that any house or place is a post office, or a place where the public may make telephone calls, or that any box is a post office letter box;

and every person, when required by a notice given by the Postmaster-General to remove or efface any such words, letters or marks as aforesaid, or to remove or effectually close up any letter box belonging to him or under his control which has been a post office letter box, shall comply with the requirement.

(2) A person shall not without the authority of the Postmaster-General—

- (a) place or maintain in or on any ship, vehicle, aircraft or premises belonging to him or under his control; or
- (b) use in any document in relation to himself or any other person or in relation to any ship, vehicle, aircraft or premises,

the words "Royal Mail" or "Royal Air Mail" or any words, letters or marks which signify or imply or may reasonably lead the public to believe that the ship, vehicle, aircraft or premises is or are used by the Postmaster-General or with his authority for the purpose of collecting or conveying postal packets or that he or that other person is authorised by the Postmaster-General to collect or convey such packets; and every person when required by a notice given by the Postmaster-General to remove or efface or cease to use any such words, letters or marks as aforesaid shall comply with the requirement.

(3) If any person acts in contravention of this section, he shall be liable on summary conviction to a fine not exceeding forty shillings, and, if the offence is continued after a previous conviction, to a fine not exceeding five shillings for every day during which the offence so continues.

65.—(1) If any person wilfully obstructs or molests, or incites anyone to obstruct or molest, an officer of the Post Office in the execution of his duty, or whilst in any post office or within any premises belonging to any post office or used therewith obstructs the course of business of the Post Office, he shall be liable on summary conviction to a fine not exceeding ten pounds, or to imprisonment for a term not exceeding one month, or to both.

Obstruction
and
molestation
of officers of
the Post Office.

(2) Any officer of the Post Office may require any person guilty of any offence under this section to leave a post office or any such premises as aforesaid and, if the person so required refuses or fails to comply with the requirement, he shall be liable on summary conviction to a further fine not exceeding five pounds, and may be removed by any officer of the Post Office, and any constable shall on demand remove or assist in removing any such person.

66. If any person—

- (a) sends any message by telephone which is grossly offensive or of an indecent, obscene or menacing character ;
- (b) sends any message by telephone, or any telegram, which he knows to be false, for the purpose of causing annoyance, inconvenience or needless anxiety to any other person ; or
- (c) persistently makes telephone calls without reasonable cause and for any such purpose as aforesaid,

Prohibition
of sending
offensive or
false telephone
messages
or false
telegrams, etc.

he shall be liable on summary conviction to a fine not exceeding ten pounds, or to imprisonment for a term not exceeding one month, or to both.

Provision
against
hawking
opposite
General Post
Office.

67. If any hawker, newsvendor, or idle or disorderly person stops or loiters on the flagway or pavement opposite the General Post Office in London, or in any part thereof, he shall be liable on summary conviction to a fine not exceeding five pounds.

Endeavouring
to procure the
commission
of any
felony or
misdemeanour.

68. If any person solicits or endeavours to procure any other person to commit an offence punishable on indictment under this Act, he shall be guilty of a misdemeanour and be liable to imprisonment for a term not exceeding two years.

Legal Proceedings

Summary
proceedings.

69.—(1) Proceedings for any offence against this Act punishable on summary conviction may be commenced at any time within one year next after the commission of the offence.

(2) For the purposes of the operation of section thirteen of the Summary Jurisdiction (Scotland) Act, 1908 (which relates to offences triable either by indictment or summarily), sections fifty-two, fifty-three, fifty-four and fifty-seven of this Act shall have effect in Scotland as if for the word "felony" there were substituted the word "misdemeanour."

Venue.

70.—(1) An offence against this Act may be tried either in the county or place in which it was actually committed or in any county or place in which the alleged offender is apprehended or is in custody or, where the offence is in respect of a mail, mail bag, postal packet, or money order, or any chattel, money or valuable security sent by post, in any county or place through any part of which the mail, mail bag, postal packet, money order, chattel, money or security passed in due course of conveyance by post; and an offence committed in Scotland may also be tried at any sitting of the High Court of Justiciary.

(2) Where an offence against this Act is committed on any highway, harbour, canal, river, arm of the sea, or other water constituting the boundary of two or more counties or places, it may be tried in any of those counties or places.

(3) The offence of being accessory to or of aiding or abetting an offence against this Act may be tried in any county or place in which the last-mentioned offence may be tried.

Provisions as
to form of
proceedings.

71.—(1) Without prejudice to the provisions of the Indictments Act, 1915, or the Indictments Act (Northern Ireland), 1945, in any legal proceedings for any offence committed or attempted to be committed, or any malicious, injurious or fraudulent act or thing done in, upon or with respect to the Post Office or the Post Office revenue, or any mail bag, postal packet or money order, or any chattel, money or valuable security sent by post, or in any way concerning any property under the

management or control of the Postmaster-General, it shall be sufficient to allege the property to belong to Her Majesty's Postmaster-General and to allege any such act or thing to have been done with intent to injure or defraud Her Majesty's Postmaster-General without in either case naming the person who is Postmaster-General, and it shall not be necessary to allege or to prove upon the trial or otherwise that the mail bag, postal packet, money order, chattel, money, security or property was of any value.

(2) Without prejudice as aforesaid, in any legal proceedings against any officer of the Post Office for any offence committed against this Act, it shall be sufficient to allege that the alleged offender was an officer of the Post Office at the time of the commission of the offence, without stating further the nature or particulars of his employment.

72.—(1) On the prosecution of any offence against this Act, whether summarily or on indictment, evidence that any article is in the course of transmission by post, or has been accepted on behalf of the Postmaster-General for transmission by post, shall be sufficient evidence that the article is a postal packet. Evidence of thing being postal packet, and of consent of Postmaster-General to prosecution.

(2) Where the consent or order of the Postmaster-General is required to or for any prosecution, an instrument purporting to be executed by him or on his behalf by an officer of the Post Office duly authorised by or under section eighty-three of this Act and stating that the prosecution has been consented to or ordered by the Postmaster-General shall be sufficient proof of that fact, unless the contrary is shown.

73. The Postmaster-General or any of his officers or agents authorised by him for the purpose may accept from any person any fine incurred or alleged to be incurred by that person under this Act, or any part of such a fine, without any legal proceedings for the recovery thereof, and the Postmaster-General may compromise and compound any legal proceedings commenced by his authority or under his control against any person for recovering any such fine on such terms and conditions as the Postmaster-General in his absolute discretion thinks proper: Power to compound actions, etc.

Provided that this section shall extend only to England and Wales.

74.—(1) Subject to subsection (2) of this section any fine, the pecuniary proceeds of any forfeiture and any other sum recovered in respect of an offence against this Act shall, notwithstanding anything in any other enactment, be paid into the Exchequer unless applied as an appropriation in aid under section two of the Public Accounts and Charges Act, 1891. Application of fines.

(2) In the application of the foregoing subsection to England and Wales, nothing therein shall prejudice the operation of

section twenty-seven of the Justices of the Peace Act, 1949, or section one hundred and fourteen of the Magistrates' Courts Act, 1952 (which relate to the disposal of fines imposed by courts of summary jurisdiction in England and Wales), but any sum paid to the Secretary of State in pursuance of the said section twenty-seven in respect of an offence against this Act shall be deemed to be Exchequer moneys within the meaning of that section and shall be paid by the Secretary of State into the Exchequer unless applied as aforesaid.

Offences also punishable at common law or under some other Act.

75. Where proceedings are taken before any court against a person in respect of an offence against this Act which is also an offence punishable at common law or under some Act other than this Act, the court may direct that, instead of those proceedings being continued, proceedings shall be taken for punishing that person at common law or under that other Act.

Recovery of sums from officers of Post Office.

76. Where any sum not exceeding twenty pounds is due from any officer of the Post Office or from his sureties in respect of moneys received in the discharge of his duty, it may, without prejudice to any other mode of recovery, be recovered in England, Wales or Northern Ireland summarily as a civil debt and any such sum of whatever amount may be recovered in the Channel Islands or the Isle of Man as a debt due to the Crown.

Miscellaneous and General

Exemption from toll.

77.—(1) No person shall demand any toll on the passing of any vehicle or horse conveying mail bags at places where tolls are otherwise demandable.

(2) If any person employed to receive the tolls or rates at a gate or bar erected upon a highway, bridge or post road demands toll for any mail or any person, horse or vehicle going or employed to go for any mail bag, or does not permit any such mail, person, horse or vehicle to pass without delay, or wilfully delays or obstructs any such mail, person, horse or vehicle at or in passing a gate or bar, he shall for each offence be liable on summary conviction to a fine not exceeding five pounds.

(3) If any person employed to receive the tolls at a ferry demands any toll for any mail, or if any ferryman does not, within fifteen minutes after demand made, convey any mail (if it be possible or safe to do so) across the ferry to the usual landing place, he shall for each offence be liable on summary conviction to a fine not exceeding five pounds.

(4) Any toll leviable in Scotland or Northern Ireland which but for the foregoing provisions of this section would be demandable on the passing of any mail shall be accounted for and paid by the Postmaster-General out of moneys provided by Parliament.

78.—(1) Where it appears to the Postmaster-General that any post office letter box, by reason of being on the premises of any private person or otherwise, is so situated as not to afford the same security against the improper removal of postal packets therefrom or other fraud as exists in the case of other post office letter boxes, he may declare that that post office letter box shall be a private posting box, and shall affix upon or near the box a notice of its being and of the effect of its being a private posting box, and a postal packet put into that box shall not, for the purpose of any enactment, law or contract whereby the due posting of a postal packet is evidence of the receipt thereof by the addressee, be deemed to have been duly posted.

Provision as
to post office
letter boxes.

(2) A certificate purporting to be signed by the Postmaster-General or on his behalf by an officer of the Post Office duly authorised by or under section eighty-three of this Act to the effect that any box or receptacle is or was provided by the permission or under the authority of the Postmaster-General for the purpose of receiving postal packets or any class of postal packets, shall in any legal proceedings be sufficient proof of the facts stated in the certificate unless the contrary is shown.

79.—(1) Where an officer of the Post Office vacates his office (whether by reason of dismissal, resignation, death or otherwise) he, or if he is dead his personal representative or the person acting as his personal representative, shall deliver to the Postmaster-General all articles (whether uniform, accoutrements, appointments or other necessities) which have been issued to the officer vacating his office for the execution of his duty and are not the property of that officer, and shall deliver the articles in good order and condition, fair wear and tear only excepted.

Surrender of
clothing by
officer of
Post Office
on ceasing
to be officer.

(2) If any person fails to comply with the provisions of this section he shall be liable on summary conviction to a fine not exceeding forty shillings, and also to pay such further sum not exceeding forty shillings as the court may determine to be the value of the articles not delivered, or, if the articles have been delivered but not in good order and condition, of the damage done to the articles.

(3) Any justice of the peace and in Scotland any sheriff or magistrate of a burgh may issue a warrant by virtue of which a constable may search for and seize any articles not delivered as required by this section, in like manner as if they were stolen goods and the warrant were a warrant to search for stolen goods.

80. All expenses incurred by the Postmaster-General in the execution of this Act or otherwise in the management of the Post Office and not otherwise provided for by any enactment shall be paid out of moneys provided by Parliament.

Post Office
expenses.

Post Office
regulations
and warrants.

81.—(1) The Treasury may by warrant, on the representation of the Postmaster-General, make regulations with respect to any matter which is authorised or required by this Act to be effected by Post Office regulations.

(2) Any power to make warrants conferred by this Act on the Treasury shall be exercisable by statutory instrument, and any statutory instrument containing Post Office regulations shall be laid before Parliament after being made.

(3) The Documentary Evidence Act, 1868, as extended by the Documentary Evidence Act, 1882, shall have effect—

(a) as if the Postmaster-General were mentioned in the first column, and the Director-General or any Deputy Director-General, director or assistant secretary of the Post Office were mentioned in the second column, of the Schedule to the former Act; and

(b) as if a warrant of the Treasury under this Act were mentioned in section two of the former Act as well as an order.

Signature of
Treasury
warrants,
consents, etc.

82. Any warrant of the Treasury under this Act may be signed in manner provided by the Treasury Instruments (Signature) Act, 1849, and any order, consent, authority or direction of the Treasury (not being a warrant) under this Act may be signed either in manner provided by that Act or under the hand of a secretary or assistant secretary to the Treasury.

Exercise of
powers on
behalf of
Postmaster-
General.

83.—(1) Any instrument or document required or authorised to be executed or signed by the Postmaster-General (whether in his corporate capacity or otherwise) may be executed or signed on his behalf by the Director-General or a Deputy Director-General of the Post Office or by such other officers of the Post Office (whether described by name or by reference to their rank or office or class of office) as may be prescribed by Post Office regulations, either generally or as respects any class of instruments or documents, or as may be directed by the Postmaster-General as respects any particular instrument or document.

(2) Any instrument or document purporting to be executed or signed by an officer of the Post Office duly authorised in that behalf by or under this section shall, until the contrary is proved, be deemed to have been duly executed or signed, without proof of the authority or official character of the person purporting to have executed or signed it.

(3) Subject to subsection (1) of this section, any act authorised or required to be done by, to or before the Postmaster-General may be done by, to or before any officer, deputy, servant or agent appointed by him in that behalf.

Exemption of
Postmaster-
General from
stamp duty.

84. Every deed, instrument, money order, bill, cheque, receipt or other document, made or executed for the purposes of the Post Office by, to, or with Her Majesty or any officer of the Post Office shall be exempt from any stamp duty imposed by

any enactment, whether passed before or after the commencement of this Act, except where that duty is declared by the document, or by some memorandum endorsed thereon, to be payable by some person other than the Postmaster-General.

85. In order that such part of the hereditary revenue of the Crown arising in and by the Post Office as is vested in Her Majesty may be preserved in the Crown for the future benefit thereof, it is hereby declared that that revenue or any part thereof shall not hereafter be alienable, chargeable or grantable by Her Majesty, or her heirs or successors, for any estate, term or time whatsoever to endure longer than the life of Her Majesty, or of such King or Queen as shall make the alienation, charge or grant, and that all gifts, grants, alienations and assurances whatsoever to be had or made of, and charges upon, the said revenue or any part thereof contrary to the provisions of this Act shall be null and void without any proceeding to determine them or make them void.

Alienation of
Post Office
duties by
Crown.

86. Notwithstanding anything in any other Act, neither the Postmaster-General nor any officer of the Post Office shall be compelled to serve as a sheriff or in any ecclesiastical or corporate or parochial or other public office or employment, or on any jury or inquest.

Exemption of
officers of Post
Office from
certain offices.

87.—(1) In this Act, except where the context otherwise requires, the following expressions have the following meanings respectively:—

Interpretation.

“British postal agency” means any place, situated in a foreign country, where a post is established by the Postmaster-General;

“British postal area” means the United Kingdom, the Channel Islands and the Isle of Man;

“chattel” in relation to Scotland means a corporeal moveable;

“commander”, in relation to an aircraft, includes the pilot or other person in charge of the aircraft;

“foreign”, in relation to any postal packet, means either posted in the British postal area and sent to a place outside that area, or posted in a place outside that area and sent to a place within that area, or in transit through the British postal area to a place outside that area;

“inland”, in relation to any postal packet or any description thereof, means posted within the British postal area and addressed to some place in that area, and “inland postage” means the postage chargeable on an inland postal packet;

- “ mail ” includes every conveyance by which postal packets are carried, whether it be a ship, aircraft, vehicle, horse or any other conveyance, and also a person employed in conveying or delivering postal packets ;
- “ mail bag ” includes a parcel, an envelope and any form of container or covering in which postal packets in course of transmission by post are conveyed, whether or not it contains any such packets ;
- “ mandated territory ” means a territory in respect of which a mandate on behalf of the League of Nations has been accepted by His Majesty and is being exercised by the government of any part of Her Majesty’s dominions ;
- “ master ”, in relation to a ship, includes every person (except a pilot) having command or charge of the ship, whether the ship is a ship of war or other ship ;
- “ officer of the Post Office ” includes the Postmaster-General, and any person employed in any business of the Post Office, whether employed by the Postmaster-General or by any person under him or on behalf of the Post Office ;
- “ parcel ” means any postal packet defined as a parcel by Post Office regulations ;
- “ postage ” means the duty chargeable for the transmission of postal packets ;
- “ postal packet ” means a letter, postcard, reply postcard, newspaper, printed packet, sample packet, or parcel, and every packet or article transmissible by post, and includes a telegram ;
- “ post office ” includes any house, building, room, vehicle or place used for the purposes of the Post Office, and any post office letter box ;
- “ post office letter box ” includes any pillar box, wall box, or other box or receptacle provided by the permission or under the authority of the Postmaster-General for the purpose of receiving postal packets, or any class of postal packets, for transmission by or under the authority of the Postmaster-General ;
- “ public service vehicle ”, in relation to Great Britain, means a public service vehicle within the meaning of the Road Traffic Acts, 1930 to 1934 ;
- “ railway undertakers ” means any authority, body or person authorised by any enactment to construct, work or carry on a railway ;

“regular mail train” has the meaning assigned by section thirty-three of this Act, and “regular mail train services” means services performed under that section or section thirty-four of this Act including services performed under those sections by virtue of section forty-two or subsection (3) of section forty-four of this Act;

“ship” includes any boat or vessel whatsoever;

“sorting carriage” has the meaning assigned by section thirty-four of this Act;

“telegraph post” means a post, pole, standard, stay, strut or other above-ground contrivance for carrying, suspending or supporting a telegraph as defined by the Telegraph Act, 1869;

“the purposes of the Post Office” includes any purpose relating to or in connection with the execution of any duties for the time being undertaken by the Postmaster-General or any of his officers;

“trust territory” means a territory placed under international trusteeship, and administered by the government of any part of Her Majesty’s dominions;

“valuable security” has the same meaning as in the Larceny Act, 1916, and includes anything which is a valuable security within the meaning of that Act and any part of such a thing, and so far as is necessary for the purposes of this definition that Act shall be deemed to have effect in Scotland, as if, however, any references therein to real estate and to chattels personal included respectively references to heritable property and to corporeal moveables;

“vehicle” includes a railway vehicle.

(2) For the purposes of this Act—

- (a) a postal packet shall be deemed to be in course of transmission by post from the time of its being delivered to any post office to the time of its being delivered to the addressee;
- (b) the delivery of a postal packet of any description to a letter carrier or other person authorised to receive postal packets of that description for the post or to an officer of the Post Office to be dealt with in the course of his duty shall be a delivery to a post office;
- (c) the delivery of a postal packet at the premises to which it is addressed or redirected, or to the addressee’s servant or agent or to some other person considered to be authorised to receive the packet, shall be a delivery to the addressee.

(3) Except in so far as the context otherwise requires, any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by or under any other enactment, including this Act.

(4) A reference in any enactment other than this Act to a post letter shall be construed as a reference to a postal packet within the meaning of this Act.

Application to
Northern
Ireland—
general.

88.—(1) The following provisions of this section shall have effect for the purposes of the application of this Act to Northern Ireland.

(2) Except where the context otherwise requires, the following expressions have the following meanings respectively—

“enactment” includes an enactment of the Parliament of Northern Ireland;

“public service vehicle” means a public service vehicle within the meaning of the Motor Vehicles and Road Traffic Acts (Northern Ireland), 1926 to 1945, not being a vehicle licensed as a motor hackney carriage pursuant to regulations for the time being in force under Part II of the Motor Vehicles (Traffic and Regulation) Act (Northern Ireland), 1926;

“summary conviction” means conviction in accordance with the enactments for the time being in force in Northern Ireland relating to summary jurisdiction;

“Transport Tribunal”, except in section twenty-nine of this Act, means the Transport Tribunal for Northern Ireland set up under the Transport Act (Northern Ireland), 1948.

(3) Any reference in this Act to any enactment of the Parliament of the United Kingdom shall be construed as a reference to that enactment as it applies in Northern Ireland.

(4) Section thirty-eight of the Interpretation Act, 1889, shall have effect as if the expressions “Act” and “enactment” therein included enactments of the Parliament of Northern Ireland.

Application to
Channel
Islands—
general.

89.—(1) This Act, except sections thirty-three to forty-five and section fifty-one, shall extend to the Channel Islands and the Royal Courts of the Channel Islands shall register this Act accordingly.

(2) In the application of this Act to the Channel Islands, except where the context otherwise requires, the following expressions have the following meanings respectively—

“constable” means an officer of police;

“justice of the peace” means the Bailiff of Jersey or the Bailiff of Guernsey ;

“misdemeanour” means a delit, or an offence not being a felony ;

“public service vehicle” means—

(a) in Jersey, a public service vehicle within the meaning of the Motor Traffic (Jersey) Law, 1935 ; and

(b) in Guernsey, a public vehicle within the meaning of the Passenger Transport Licensing Authority (Guernsey) Law, 1948,

not being in either case a vehicle adapted to carry less than eight passengers which carries those passengers otherwise than at separate fares.

90.—(1) This Act except sections thirty-three to forty-five shall extend to the Isle of Man. Application to
Isle of Man—
general.

(2) Any offence against this Act which is punishable on summary conviction and any fine under this Act which is recoverable on summary conviction may, in the Isle of Man, be prosecuted or recovered before a court of summary jurisdiction constituted in accordance with the Petty Sessions and Summary Jurisdiction Acts, 1927 and 1946, being acts of the legislature of the Isle of Man, or any other Act of that legislature whether passed before or after the commencement of this Act, and at the instance of an officer of the Post Office or of a constable.

(3) In the application of this Act to the Isle of Man, except where the context otherwise requires, the following expressions have the following meanings respectively—

“indictment” means an information ;

“public service vehicle” means a motor vehicle licensed as a road service vehicle, stage coach or hackney carriage, not being a vehicle adapted to carry less than eight passengers which carries those passengers otherwise than at separate fares.

(4) Any Act of the legislature of the Isle of Man punishing offences committed in relation to post letters or post letter bags shall have effect as if a parcel were a post letter and any receptacle containing a parcel were a post letter bag.

(5) For the purposes of sections fifty-two to fifty-eight of this Act, section thirty-six of the Petty Sessions and Summary

Jurisdiction Act, 1927 (being an Act of the legislature of the Isle of Man) (which relates to the summary trial of indictable offences), and any other enactment of that legislature, whether passed before or after the commencement of this Act, amending the said section thirty-six, shall have effect as if offences under the said sections of this Act were included in the Third Schedule to the said Act of 1927.

Repeals and
savings.

91.—(1) The enactments mentioned in the Third Schedule to this Act are hereby repealed to the extent specified in relation thereto in the third column of that Schedule.

(2) Any letters patent granted, warrant, arrangement or appointment made, direction, decision or undertaking given, post established, registration effected, notice served, sanction obtained or other thing done under any enactment repealed by this Act or by the Post Office Act, 1908, shall, if in force at the commencement of this Act, continue in force and have effect as if granted, made, given, established, effected, served, obtained or done under the corresponding provision of this Act.

(3) Where a period of time specified in any enactment repealed by this Act is current at the commencement of this Act, this Act shall have effect as if the corresponding provision thereof had been in force when that period began to run.

(4) Save as expressly provided by this Act, any reference in any enactment, warrant or other document whatsoever to the Post Office Acts, or any of them, or to the Post Office laws, or to any enactment repealed by this Act, shall unless the contrary intention appears be construed as a reference to this Act or to the corresponding provision of this Act, as the case may require.

(5) Nothing in this section shall affect any Act of the legislature of the Isle of Man in force at the commencement of the Post Office Act, 1908.

(6) Nothing in the foregoing provisions of this section shall be taken as prejudicing the operation of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

Short title.

92.—(1) This Act may be cited as the Post Office Act, 1953.

(2) This Act shall come into force one month after the passing thereof.

SCHEDULES

FIRST SCHEDULE

Section 47.

PROVISIONS WITH RESPECT TO ACQUISITION OF LAND IN THE UNITED
KINGDOM BY THE POSTMASTER-GENERAL

1. Subject to the provisions of this Schedule, the Lands Clauses Acts, except the provisions relating to access to the special Act, shall be incorporated with this Act.

2. In construing the said Acts for the purposes of this Schedule—

- (a) the expression "the special Act" shall mean this Act;
- (b) the expression "the promoters of the undertaking" shall mean the Postmaster-General; and
- (c) the expression "land" shall include any estate or interest in or over land.

3. The bond required by section eighty-five of the Lands Clauses Consolidation Act, 1845, or by section eighty-four of the Lands Clauses Consolidation (Scotland) Act, 1845, shall be under the seal of the Postmaster-General and shall be sufficient without sureties.

4. The provisions of the Lands Clauses Acts with respect to land purchased compulsorily shall not be put in force until the sanction of Parliament has been obtained in the manner hereinafter mentioned.

5. At least three months before an application is made to Parliament for sanction to the compulsory purchase of land under this Act, the Postmaster-General, with the consent of the Treasury, shall serve a notice on every owner or reputed owner, lessee, or reputed lessee, and occupier of any land intended to be so purchased—

- (a) describing the land intended to be taken, and in general terms the purposes to which it is to be applied;
- (b) stating the intention of the Treasury to obtain the sanction of Parliament to the purchase thereof;
- (c) inquiring whether the person so served assents or dissents to the taking of his land; and
- (d) requesting him to forward to the Treasury any objections he may have to his land being taken.

6. At some time after the service of the said notice, the Treasury shall cause a local inquiry to be held by a competent officer into the objections made by any person whose land is required to be taken and by other persons, if any, interested in the subject matter of the inquiry.

7. If after the said inquiry has been held the Treasury are satisfied that the land ought to be taken, they may submit a Bill to Parliament containing provisions authorising the Postmaster-General to take the land, and any such Bill shall be deemed to be a public Bill, and, if

1ST SCH.
—cont.

passed into an Act, to have conveyed the sanction of Parliament to the purchase compulsorily of the land therein mentioned or referred to, and the period for the compulsory purchase shall be three years after the passing of the Act:

Provided that, if while the Bill is pending in either House of Parliament a petition is presented against anything comprised therein, the Bill may be referred to a Select Committee and the petitioner shall be allowed to appear and oppose as in the case of private Bills.

Section 63.

SECOND SCHEDULE

SECTION SIXTY-FIVE OF THE POST OFFICE ACT, 1908, AS ORIGINALLY ENACTED

Prohibition of
fictitious stamps.

65.—(1) A person shall not—

- (a) make, knowingly utter, deal in or sell any fictitious stamp, or knowingly use for any postal purpose any fictitious stamp; or
- (b) have in his possession, unless he shows a lawful excuse, any fictitious stamp; or
- (c) make, or, unless he shows a lawful excuse, have in his possession, any die, plate, instrument, or materials for making any fictitious stamp.

(2) If any person acts in contravention of this section he shall be liable on summary conviction on a prosecution by order of the Commissioners of Inland Revenue to a fine not exceeding twenty pounds, subject to the like right of appeal as in the case of a penalty under the Acts relating to the Excise.

(3) Any stamp, die, plate, instrument, or materials found in the possession of any person in contravention of this section may be seized and shall be forfeited.

(4) For the purposes of this section “fictitious stamp” means any facsimile or imitation or representation, whether on paper or otherwise, of any stamp for denoting any rate of postage, including any stamp for denoting a rate of postage of any British possession, or of any foreign country.

THIRD SCHEDULE

Section 91.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Vict. c. 98.	The Railways (Conveyance of Mails) Act, 1838.	The whole Act.
7 & 8 Vict. c. 85.	The Railway Regulation Act, 1844.	Section eleven.
10 & 11 Vict. c. 85.	The Post Office (Duties) Act, 1847.	The whole Act.
31 & 32 Vict. c. 119.	The Regulation of Railways Act, 1868.	Sections thirty-six and thirty-seven.
36 & 37 Vict. c. 48.	The Regulation of Railways Act, 1873.	Sections eighteen to twenty.
45 & 46 Vict. c. 74.	The Post Office (Parcels) Act, 1882.	The whole Act.
54 & 55 Vict. c. 38.	The Stamp Duties Management Act, 1891.	Section seven.
56 & 57 Vict. c. 38.	The Conveyance of Mails Act, 1893.	The whole Act.
61 & 62 Vict. c. 46.	The Revenue Act, 1898.	Paragraph (i) of section one.
8 Edw. 7. c. 48	The Post Office Act, 1908	The whole Act.
3 & 4 Geo. 5. c. 11.	The Post Office Act, 1913	The whole Act.
10 & 11 Geo. 5. c. 40.	The Post Office and Telegraph Act, 1920.	The whole Act.
12 & 13 Geo. 5. c. 17.	The Finance Act, 1922.	Section forty-eight.
12 & 13 Geo. 5. c. 49.	The Post Office (Parcels) Act, 1922.	The whole Act.
16 & 17 Geo. 5. c. 9.	The Economy (Miscellaneous Provisions) Act, 1926.	Section seventeen.
20 & 21 Geo. 5. c. 43.	The Road Traffic Act, 1930.	In section one hundred and four, subsection (3).
25 & 26 Geo. 5. c. 15.	The Post Office (Amendment) Act, 1935.	The whole Act.
10 & 11 Geo. 6. c. 49.	The Transport Act, 1947	In section sixty-five, subsection (2).
15 & 16 Geo. 6. & 1 Eliz. 2. c. 36.	The Post Office (Amendment) Act, 1952.	The whole Act.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Lands Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 18.
Lands Clauses Consolidation (Scotland) Act, 1845	8 & 9 Vict. c. 19.
Harbours, Docks and Piers Clauses Act, 1847 ...	10 & 11 Vict. c. 27.
Treasury Instruments (Signature) Act, 1849 ...	12 & 13 Vict. c. 89.
Duchy of Lancaster Lands Act, 1855 ...	18 & 19 Vict. c. 58.
Railway Construction Facilities Act, 1864 ...	27 & 28 Vict. c. 121.
Documentary Evidence Act, 1868 ...	31 & 32 Vict. c. 37.
Telegraph Act, 1869 ...	32 & 33 Vict. c. 73.
Public Health (Ireland) Act, 1878 ...	41 & 42 Vict. c. 52.
Documentary Evidence Act, 1882 ...	45 & 46 Vict. c. 9.
Post Office (Parcels) Act, 1882 ...	45 & 46 Vict. c. 74.
Interpretation Act, 1889 ...	52 & 53 Vict. c. 63.
Public Accounts and Charges Act, 1891 ...	54 & 55 Vict. c. 24.
Stamp Duties Management Act, 1891 ...	54 & 55 Vict. c. 38.
Merchant Shipping Act, 1894 ...	57 & 58 Vict. c. 60.
Post Office Act, 1908 ...	8 Edw. 7. c. 48.
Summary Jurisdiction (Scotland) Act, 1908 ...	8 Edw. 7. c. 65.
Forgery Act, 1913 ...	3 & 4 Geo. 5. c. 27.
Criminal Justice Administration Act, 1914 ...	4 & 5 Geo. 5. c. 58.
Indictments Act, 1915 ...	5 & 6 Geo. 5. c. 90.
Larceny Act, 1916 ...	6 & 7 Geo. 5. c. 50.
Road Traffic Act, 1930 ...	20 & 21 Geo. 5. c. 43.
Post Office (Amendment) Act, 1935 ...	25 & 26 Geo. 5. c. 15.
Requisitioned Land and War Works Act, 1945 ...	8 & 9 Geo. 6. c. 43.
Exchange Control Act, 1947 ...	10 & 11 Geo. 6. c. 14.
Crown Proceedings Act, 1947 ...	10 & 11 Geo. 6. c. 44.
Town and Country Planning Act, 1947 ...	10 & 11 Geo. 6. c. 51.
Town and Country Planning (Scotland) Act, 1947	10 & 11 Geo. 6. c. 53.
Consolidation of Enactments (Procedure) Act, 1949 ...	12, 13 & 14 Geo. 6. c. 33.
Justices of the Peace Act, 1949 ...	12, 13 & 14 Geo. 6. c. 101.
Magistrates' Courts Act, 1952 ...	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.

CHAPTER 37

Registration Service Act, 1953

ARRANGEMENT OF SECTIONS

Registrar General, etc.

Section

1. Registrar General.
2. General Register Office.
3. Registrar General's staff, etc.
4. Salaries, receipts and expenses.

General organisation of registration service

5. Districts and sub-districts.
6. Superintendent registrars and registrars of births and deaths.
7. Additional registrars of marriages.
8. Deputy superintendent registrars and registrars.